

January 28, 2026

1:30 P.M. Civil Case Management

21CV45759	RANDOLPH WALL AKA RANDY WALL v AVALON HEALTH CARE SAN ANDREAS, ET AL	The case is not yet at issue. There is proper service of the Complaint and Summons on Defendant Brian Wall, but defendant Wall has not filed an Answer and he has not been dismissed and there is no default. The Court notes Plaintiff's position that Defendant Wall is a nominal defendant against whom no adverse ruling can be sought. The case, however, cannot be at issue until Plaintiff resolves the status of defendant Wall by either dismissal, by joining them as a plaintiff pursuant to Code of Civil Procedure §382, or by some other means. The next Case Management Conference is set for March 11, 2026, 1:30p.m. in Dept. 4.
22CF13797	FRANOCK ENTERPRISES INC. DBA SERVICEMASTER ADVANTAGE v SMITH	Judgment was entered on January 23, 2026. The matter is dropped from the Case Management Conference.
23CV46905	GIFFIN v VASCONCELLOS	The Court notes the Motions to Enforce Settlement since the settlement agreement was reached July 28, 2025. The parties have not indicated further enforcement issues since the Court's ruling appointing the Clerk of Court as elisor. There is no request for dismissal. Absent a showing of good cause, the matter will be dismissed.
23CV46931	BT FARMS, A CALIFORNIA CORPORATION v PURE CALAVERAS, LLC, ET AL	A Clerk's Entry of Default has been ordered as to all named Defendants. Plaintiff is directed to perfect the Judgment, including dismissing Does 1-50 if necessary. The next Case Management Conference is set for April 8, 2026, at 1:30 p.m. in Dept. 4.
24CF14480	LVNV FUNDING LLC v VAURS	There is proper service of the Complaint and Summons, but it has not been answered and no default has been filed. Plaintiff is directed to have an answer, dismissal or default on file prior to the continued OSC re: Default Judgment set